

In the Matter of

Investigation No. 337-TA-3930
(Docket No. 3930)

**CERTAIN DYNAMIC RANDOM
ACCESS
MEMORY (DRAM) DEVICES,
PRODUCTS
CONTAINING THE SAME, AND
COMPONENTS THEREOF (III)**

**PUBLIC INTEREST STATEMENT OF AMICUS CURIAE
ALLIANCE OF U.S. STARTUPS AND INVENTORS FOR JOBS**

Amicus curiae Alliance of U.S. Startups and Inventors for Jobs ("USIJ") respectfully submits this statement pursuant to Commission Rule 210.8(b). USIJ urges the Commission to institute this investigation and allow the Section 337 process to proceed on its merits. The public interest is not served by converting the narrow public interest exception into a threshold barrier to enforcement — a proposition the USPTO and DOJ have already addressed with considerable force.²

Interest of USIJ

USIJ is a coalition of startup companies, inventors, entrepreneurs, and investors whose businesses depend upon stable and reliable patent protection as an essential foundation for long-term technology investments.¹ USIJ previously filed a public interest statement in the earlier iteration of this dispute supporting institution and opposing pre-institution public interest adjudication. Those arguments apply here with added force: this is Netlist's third ITC complaint in eleven months, and the respondents' pre-institution opposition is a recognizable litigation tactic — not a genuine invocation of extraordinary circumstances.

I. The Commission Should Institute This Investigation

The public interest factors in 19 U.S.C. § 1337(d)(1) are narrow exceptions to be considered after an initial determination of violation — not threshold barriers that foreclose investigation of legitimate infringement claims. Netlist, Inc. is an Irvine, California-based

American technology company whose patented memory innovations are foundational to AI computing infrastructure. Multiple U.S. federal juries have issued willful infringement verdicts against Samsung Electronics totaling over \$450 million on these very patents. SK hynix has licensed Netlist's portfolio. Samsung — the world's largest DRAM manufacturer, which initially took the same position as Micron — ultimately recognized Netlist's rights and took a license. Micron alone has refused to engage. The respondents ask the Commission to do something it has done only in a handful of cases in over four decades: decline to even examine whether infringement occurred. The Commission's standard practice — institution, ALJ adjudication of the merits, public interest deferred to the remedy stage — is the correct approach. Notably, Netlist has not requested a Temporary Exclusion Order under 19 U.S.C. § 1337(e)(3).

II. The USPTO and DOJ Joint Statement Governs the Analysis

USIJ draws the Commission's attention to the Joint Comment on the Public Interest submitted by the USPTO and DOJ in Docket No. 3854 — signed by USPTO Director John A. Squires and the Acting Assistant Attorney General for the Antitrust Division.² This authoritative executive branch statement directly refutes the respondents' arguments. The Agencies established three governing propositions. First, "the public interest overwhelmingly favors the enforcement of valid patent rights through exclusion orders at the USITC," invoking Federalist No. 43's observation that the "public good fully coincides . . . with the claims of individuals" to their inventions. Second, the Commission should "reject attempts to convert the public interest factors into preliminary obstacles to enforcement," reaffirming that "the general importance of an infringer's company or technology is not the same as the public interest" and that such arguments are "often private

commercial interests masquerading as public concerns" — precisely describing what Micron, Google, SMCI, and HPE have filed here. Third, "the public interest is most accurately assessed only after determining the patent's validity and whether infringement has occurred." The Commission should adopt this framework as the governing standard for the institution decision.

III. The Respondents' Arguments Are Commercial Interests, Not Public Concerns

The respondents' submissions do not constitute the extraordinary circumstances required for pre-institution denial. If accepted, their theory would immunize any dominant company from ITC enforcement — entrenching the "efficient infringement" strategy large corporations use to exhaust smaller innovators. Four specific defects are identified. First, the supply shortage argument has a market solution: Samsung and SK hynix — approximately 65% of the global DDR5 DRAM market — have licensed Netlist's patents and continue to supply the market.⁵ Any shortage would be the result of Micron's refusal to license, not from Netlist's enforcement. Second, the cited Executive Orders do not address ITC Section 337 proceedings; the Administration's mechanism for precluding patent enforcement is Presidential disapproval under 19 U.S.C. § 1337(j), which it declined to exercise in Netlist I or Netlist II. Third, the CHIPS Act investment argument belongs at the remedy stage — Micron's choice to invest without first clearing needed IP is a flawed business decision it made, not an obligation American inventors must subsidize. Fourth, these same arguments were made and rejected in Netlist I and Netlist II; no principled basis exists for a different result simply because the respondent has changed from Samsung to Micron.³

IV. Efficient Enforcement Serves the Public Interest; Supply Concerns Belong at the Remedy Stage

USIJ's members are the small American innovators for whom Section 337 was designed — companies that invest years and tens of millions in R&D only to face adversaries with legal budgets that dwarf their entire enterprises. The Commission has correctly and repeatedly held that "the general proposition that, if the infringing activity is great enough, the public interest forbids a remedy" is one it has rejected. *Certain Baseband Processor Chips*, Inv. No. 337-TA-543, 2011 WL 6121182, at *77.³ Micron's market importance gives it leverage in licensing negotiations, but it does not immunize Micron from enforcement. The ITC's existing statutory toolkit — delayed exclusion orders, bond requirements, end-use carve-outs, and Presidential review under 19 U.S.C. § 1337(j) — is fully adequate to address legitimate supply concerns at the remedy stage. The respondents' request for pre-institution denial is not a call for calibrated relief; it is a request for no relief at all, designed to exhaust Netlist before the merits are ever reached.

Conclusion

The Commission should institute this investigation. The USPTO and DOJ have stated the correct framework: the public interest overwhelmingly favors robust, predictable enforcement of valid patent rights at the border where American innovation confronts foreign infringement. Netlist's patents were issued by the USPTO and validated by multiple federal courts. Samsung and SK hynix have licensed them. The Commission should allow Netlist the opportunity to demonstrate that Micron's products infringe the same patents. That is what Section 337 exists to provide, and that is what the public interest requires.

Respectfully submitted,

Robert Taylor
General Counsel
Alliance of U.S. Startups and Inventors for Jobs
Dated: August 28, 2026

-
- 1 USIJ's mission and membership are described at www.usij.org. No counsel for any party authored this brief in whole or in part. No party contributed money intended to fund preparing or submitting this brief.
 - 2 Joint Comment on the Public Interest of the United States Patent and Trademark Office and the United States Department of Justice, In the Matter of Certain Dynamic Random Access Memory (DRAM) Devices, Products Containing the Same, and Components Thereof, Docket No. 3854 (Nov. 25, 2025) (signed by USPTO Director John A. Squires and Acting Assistant Attorney General Abigail A. Slater, Antitrust Division, DOJ).
 - 3 Certain Baseband Processor Chips & Chipsets, Transmitter, & Receiver (Radio) Chips, Power Control Chips, & Prods. Containing Same, Including Cellular Tel. Handsets, Inv. No. 337-TA-543, 2011 WL 6121182, at *77 (USITC Oct. 1, 2011).
 - 4 The former Apple executive referenced in USIJ's prior statement described "efficient infringement" as compelled by fiduciary obligations to maximize shareholder value by prolonging patent defense. See The Economist, "The Trouble with Patent Troll Hunting" (Dec. 14, 2019).
 - 5 See Global DRAM and HBM Market Share: Quarterly, Counterpoint Research (June 8, 2026) (Samsung at 39%, SK hynix at 26%, Micron at 25%).
 - 6 Andrew A. Toole et al., USPTO, Intellectual Property and the U.S. Economy 1, 13 (3d ed. 2019).